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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

Subhi Abdelhalim;

CSAA Insurance Exchange;

PHILLIPS, SPALLAS & ANGSTADT LLP;

PRIYA D. NAVARATNASINGHAM;

ALBERTO REYNA;

MICHAEL R. CHAMBERS;

CARBONE, SMITH & KOYAMA;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

PLAINTIFF'S MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF SECOND AMENDED COMPLAINT FOR INDEPENDENT ACTION IN EQUITY

Exhibits A, B, C-1, C-2, C-4, C-6, C-7, C-8, C-10, C-12, C-12a, C-12b, D, D-1, E, E-2, F, F-1, G, J, SUB appended hereto

INTRODUCTION

This memorandum supports Plaintiff's Second Amended Complaint for Independent Action in Equity to Set Aside Judgment for Extrinsic Fraud (Case No. CGC-25-631801). The gravamen is fraud on the court: Defendants PHILLIPS, SPALLAS & ANGSTADT LLP, Priya D. Navaratnasingham, and Alberto Reyna, acting on behalf of Defendants Subhi Abdelhalim and CSAA Insurance Exchange, made false representations to the Court about receipt, possession, and prior production of critical incident recordings. The Court relied on those representations to make procedural and evi-

dentiary rulings that deprived Plaintiff of a fair opportunity to present dispositive evidence. Equity demands vacatur and a fair retrial.

This memorandum addresses: (1) the factual basis for the fraud allegations, supported by record citations; (2) the legal framework for extrinsic fraud and fraud on the court; and (3) anticipatory responses to anticipated defenses, including the litigation privilege, anti-SLAPP statute, and demurrer arguments.

PART I: THE CORE ALLEGATION AND FACTUAL BASIS

A. The Three-Leg Framework of Extrinsic Fraud

Plaintiff alleges a three-leg mechanism establishing fraud on the court:

Leg 1 (Knowledge and Access): Sworn hearing testimony established that the defense side received the 911 audio, bodycam footage (approximately five videos), and CAD log during discovery and depositions. On September 14, 2021, Defendant Chambers filed an Answer to the Complaint on behalf of Defendant Abdelhalim (Exhibit J). The Answer generally denied each allegation and asserted the Fifth Affirmative Defense (plaintiff uninsured, DUI, convicted; recovery limited to economic damages under Civil Code section 3333.4). The Answer did not acknowledge the insured's 911 confession or eyewitness evidence. It set the denial posture that PSA later continued. The defense file was transferred to Defendant Navaratnasingham on May 4, 2023 (Substitution of Attorney, Transaction ID # 69953800). The defense had knowledge of and access to the materials for approximately 20 months before trial. Documentary proof reinforces Leg 1: on February 1, 2024, Alberto Reyna of Phillips, Spallas & Angstadt LLP issued a Deposition Subpoena for Production of Business Records (Compex Order CA1147102-021) to the San Francisco Police Department, requesting the 911 call, body-worn camera footage, and all related records (Exhibit SUB). Reyna signed the subpoena and listed his law firm. At trial, Reyna represented that he was "not sure what recording" Plaintiff was referring to. The subpoena proves Reyna knew exactly what records existed and sought them by name.

Leg 2 (False Representations to the Court): Despite that access, Defendants Navaratnasingham and Reyna represented to the Court in motions and in open court that the materials were not received, were "news to me," and that counsel had no knowledge of their provenance.

Leg 3 (Court Reliance): The Court accepted those representations and made rulings that excluded evidence, denied continuances, and deferred admission of the 911 call. Plaintiff was prevented from presenting critical evidence in a timely, orderly manner.

B. Specific False Representations

1. Motion in Limine No. 6 (January 17, 2025)

Defendant Navaratnasingham, on behalf of Defendant PSA, asserted that recorded materials, including the 911 call audio, "were not produced in discovery" and should be excluded. (Clerk's Tr. Vol. 1, pp. 149–151; Exhibit A.)

2. Motion in Limine No. 17 (January 17, 2025)

Defendant Navaratnasingham signed the Declaration in Support, asserting: (1) the 911 log and recording "were not produced during discovery, rather produced at the eleventh hour prior to trial"; (2) "Defendant has no idea where this 911 call log or audio recording came from"; and (3) "Defendant has no idea who created the log and recording." (Clerk's Tr. Vol. 1, p. 238; Exhibit A.)

3. Pretrial Hearing (February 18, 2025)

Defendant Navaratnasingham represented that the defense office did not receive the 911 call until the day of the Mandatory Settlement Conference (or immediately before), that it was "news to me," and that counsel could not confirm prior receipt or production. Defendant Reyna was present. (Hearing Tr. Feb. 18, 2025, p. 141, ll. 4–11; Exhibit B.)

4. Trial Representations (April 16, 2025)

Defendants Navaratnasingham and Reyna represented that a supplemental police narrative was "not anything that we received as part of the subpoena" and expressed uncertainty about "what recording" Plaintiff was referring to regarding the 911 call. (Trial Tr. Apr. 16, 2025, ll. 2875, 2990–2994; Exhibit C-2.)

C. The Record Evidence Establishing Falsity

These representations were materially false because:

1. **Sworn testimony** of former counsel J. Jessup established that the 911 audio, body-worn camera footage, and CAD logs were served on the defense in discovery and used during

depositions. (Hearing Tr. Feb. 18, 2025, pp. 139–141; Exhibit B.)

2. **Substitution of Attorney** (Transaction ID #69953800) established that the defense file was transferred from Michael R. Chambers and Carbone Smith & Koyama to PSA on May 4, 2023, giving PSA constructive possession for 20 months before trial.
3. **Defendant's own authentication**: Defendant Abdelhalim authenticated the 911 recording under oath ("Yes. That is my voice."), collapsing the entire provenance defense. (Trial Tr. Apr. 17, 2025, l. 1979; Exhibit C-4.)
4. **The February 1, 2024 Subpoena (Exhibit SUB)**: Alberto Reyna, of Phillips, Spallas & Angstadt LLP, issued a Deposition Subpoena for Production of Business Records to the San Francisco Police Department on February 1, 2024 (Compex Order CA1147102-021). Attachment 3 requested "any and all documents and records stored in any format" related to Report #210079556, including the 911 call, body-worn camera footage, and related data. Reyna signed the subpoena and listed his law firm. At trial, Reyna stated he was "not sure what recording" Plaintiff was referring to. The subpoena is documentary proof that Reyna knew exactly what records existed and sought them by name. CSAA funded the defense; the subpoena demonstrates CSAA's agents knew the evidence existed and requested it.

D. The Irreconcilable Triad

Three facts that cannot coexist:

1. The 911 recording, body-worn camera footage, and CAD logs were produced to the defense during discovery in 2022 and used in depositions. (Jessup testimony.)
2. The defense file containing these materials was transferred to PSA on May 4, 2023, and PSA held that file for 20 months before trial.
3. At trial, defense counsel told the Court the materials were "not produced in discovery," of "unknown provenance," and "news to me."

All three facts are documented in the official record. No demurrer can reconcile them.

E. The Fatal Admission and Timeline of Misrepresentation

The extrinsic fraud in this case is not merely inferred; it is proven through an objective, chronological trail of contradictory representations made by defense counsel to the Court. This timeline

culminates in a fatal admission that exposes the prior statements as intentional, actionable misrepresentations.

The timeline of deception and its ultimate collapse is as follows:

1. January 17, 2025 (The Initial Deception via Motions in Limine): Defendant Navaratnasingham filed Motions in Limine Nos. 6 and 17, affirmatively stating to the Court that the 911 call audio and logs "were not produced during discovery, rather produced at the eleventh hour." She further declared under penalty of perjury: "Defendant has no idea where this 911 call log or audio recording came from." (Clerk's Tr. Vol. 1, p. 238; Exhibit A).

2. February 1, 2024 (The Hidden Knowledge): In direct contradiction to the MIL representations, the defense had actively subpoenaed these exact records. Defendant Reyna issued a Deposition Subpoena for Production of Business Records to the SFPD specifically requesting the 911 call and body-worn camera footage.

3. February 18, 2025 (The Hearing Misrepresentation): At the pretrial hearing, when confronted with the evidence, Defendant Navaratnasingham doubled down on the deception in open court. She stated the existence of the 911 call was "news to me" and claimed the defense office did not receive the 911 call until the day of the Mandatory Settlement Conference. She represented that she could not confirm prior receipt or production. (Hearing Tr. Feb. 18, 2025, p. 141; Exhibit B).

4. April 16, 2025 (The Fatal Admission): On Trial Day 7, the defense's strategy of plausible deniability collapsed entirely. When discussing the 911 records and prior counsel's file (the Dolan Law Firm), Defendant Navaratnasingham stated on the record:

> "Sure. They were provided by Dolan. He has had them for whatever, sure."

(Trial Tr. Apr. 16, 2025; Exhibit G, attached hereto).

This admission is the operational linchpin of the fraud-on-the-court claim. It constitutes an on-the-record concession that the defense *did* receive the evidence from prior counsel and *did* possess the records. This statement is inherently fatal to Defendant Navaratnasingham's own prior declarations in MIL No. 17 ("Defendant has no idea where this... came from") and her statements on February 18 ("news to me").

By securing exclusionary rulings and defeating trial continuances through the false narrative of "eleventh-hour" surprise, and later casually admitting that the files "were provided by Dolan," defense counsel engineered a structural inequity. The Court relied on the earlier falsehoods to poison the plaintiff's right to a fair presentation of the evidence. This timeline establishes irrefutable extrinsic fraud.

F. Officer Testimony and Meritorious Case (Exhibits C-12, C-12a, C-12b)

The record further supports the meritorious-case element and abuse-of-discretion through officer testimony. The investigating officer never cited pedestrians, bicyclists, or scooters for any directional violation, yet concluded plaintiff "caused the collision" under Vehicle Code section 21651(b). (RT 7, pp. 143–144, Exh. C-12.) The officer's fault conclusion rested on secondhand statements, and the Court admitted it as lay opinion. (RT 7, pp. 92, 154, Exh. C-12b.) A sign stated "turning vehicles must yield"; the officer testified on safe turning; and the jury asked about Vehicle Code sections 22107 and 21804. (RT 7, pp. 114–115, Exh. C-12a; CT 1, pp. 40–44, Exh. F-1.) These exhibits support prejudice and abuse-of-discretion: the Court prohibited the jury from considering the turning-duty statutes that were directly relevant to liability.

PART II: LEGAL FRAMEWORK

A. Extrinsic Fraud and Fraud on the Court

Extrinsic fraud occurs when a party is deprived of the opportunity to present their claim or defense because fraud prevented a real contest on the merits. (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.) False statements to the court that cause the court to make procedural and evidentiary rulings based on materially false information constitute extrinsic fraud. (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735.)

When counsel represents to the court that evidence was not received, or that counsel has no knowledge of it, and the court relies on that representation to exclude evidence, deny continuances, or defer admission, the resulting rulings are procured under a false premise. That is process corruption. The only remedy is equitable relief to set aside the judgment and restore a fair contest.

B. Distinction from Intrinsic Fraud

The defense will argue that the alleged misrepresentations constitute intrinsic fraud (witness perjury weighed by the trier of fact) rather than extrinsic fraud. The law is clear: when false statements to the court induce procedural and evidentiary rulings that deprive a party of the opportunity to present their case, the fraud is extrinsic. (*Aldrich*, supra, 170 Cal.App.3d at p. 735; *In re Marriage of Baltins* (1989) 212 Cal.App.3d 66, 82.)

Here, the false representations were not made to the jury for the jury to weigh. They were made to the judge, who relied on them to shape the procedural and evidentiary landscape of the trial. Plaintiff could not "cross-examine" the court's reliance on defense counsel's representations. The fraud was embedded in the procedural framework. This is the textbook definition of extrinsic fraud.

C. Equitable Prerequisites (Kulchar Factors)

1. **Meritorious case**: The underlying personal injury action involves a defendant who authenticated a 911 recording containing his own admission ("I barely hit him with anything"), and a 9-3 jury verdict, the minimum civil majority.
2. **Satisfactory excuse**: The judgment was procured through fraud on the court. The defense's false representations induced the Court to exclude dispositive evidence and deny continuances.
3. **Diligence**: Plaintiff attempted to present the evidence at trial. Plaintiff filed this equity action promptly after entry of judgment.
4. **No adequate remedy at law**: An independent equity action is the recognized remedy for extrinsic fraud. (*Kulchar*, supra, 1 Cal.3d at p. 472.)

PART III: ANTICIPATORY RESPONSE TO ANTICIPATED DEFENSES

A. The Litigation Privilege Does Not Apply

Civil Code section 47, subdivision (b), provides a broad privilege for communications made in judicial proceedings. However, the California Supreme Court has expressly held that this privilege does not shield claims of fraud on the court:

> "[T]he litigation privilege does not apply to a claim of fraud upon the court."

(*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065.)

This action does not seek tort damages for statements made in court. It seeks equitable relief: vacatur of a judgment procured through extrinsic fraud. The in-court representations are pleaded as operative facts showing *how* the judgment was procured by fraud, not as the basis for a damages tort. The fraud-on-the-court exception applies. (*Rusheen*, supra.)

B. The Anti-SLAPP Statute Does Not Apply

Code of Civil Procedure section 425.16 provides a special motion to strike claims "arising from" protected petitioning activity. The Fourth District Court of Appeal directly addressed this issue in *Finton Construction, Inc. v. Bidna & Keys APLC* (2015) 238 Cal.App.4th 200:

> "The gravamen of [the] complaint is the alleged fraud that [defendants] committed on the court, not [their] exercise of the right of petition."

(*Id.* at p. 213.)

This complaint does not challenge defense counsel's right to advocate, file motions, or make arguments. It challenges their false representations to the Court that induced rulings under false premises. The gravamen is not the act of filing motions in limine. The gravamen is that those representations were materially false and that the Court relied on them. Under *Finton*, any anti-SLAPP motion would fail at step one.

Even if step two were reached, Plaintiff demonstrates a probability of prevailing through irrefutable record evidence: sworn testimony, the Substitution of Attorney, the motions in limine, open-court statements, and Defendant's own authentication of the 911 recording. The defense cannot dispute the Reporter's Transcript or Clerk's Transcript.

C. The Complaint Is Immune to Demurrer for Lack of Specificity

For fraud-based claims, California requires heightened specificity: the "who, what, when, where, and how" of the alleged misrepresentation. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

The Complaint satisfies this standard because every material allegation is tied to a specific record reference:

- **Who**: Defendants Navaratnasingham, Reyna, PSA, Chambers, Carbone Smith & Koyama, CSAA, and Abdelhalim are specifically named with their roles and dates of involvement.

- **What**: The specific false representations are quoted verbatim from the Reporter's Transcript and Clerk's Transcript.
- **When**: Each representation is tied to a specific date (Jan. 17, 2025; Feb. 18, 2025; Apr. 16, 2025).
- **Where**: Superior Court of California, County of San Francisco, Department 504.
- **How**: The three-leg framework maps the mechanism of the fraud with precision.

The defense cannot claim lack of specificity when the complaint quotes the court's own transcripts and cites the Clerk's file.

D. The Cross-Front Contradiction Web

These record anchors create an interlocking set of contradictions that the defense cannot resolve:

If the defense argues the trial was fair: The evidentiary record contains the verbatim transcripts of defense counsel's false statements and the court's reliance on them. Defending the fairness of the trial validates the factual basis for this equity action.

If the defense argues the misrepresentations were "mere advocacy": The record shows the court actually relied on those representations to exclude evidence and deny continuances. Statements that induce judicial rulings are not mere advocacy; they are operative representations with judicial effect.

If the defense argues ignorance of the evidence: The Substitution of Attorney, sworn testimony, and defendant's own authentication establish that the defense had the materials for years. Ignorance is structurally impossible.

If the defense argues Plaintiff should have independently subpoenaed the records: The law does not require a litigant to assume opposing counsel is lying to the judge. A party is entitled to rely on the candor of officers of the court.

CONCLUSION

The litigation privilege does not apply to fraud on the court (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065). The anti-SLAPP statute does not protect fraud on the court from equitable relief (*Finton Construction, Inc. v. Bidna & Keys APLC* (2015) 238 Cal.App.4th 200, 213). The complaint satisfies the heightened specificity requirements for fraud because every material allegation

is supported by the official court record.

The record is the source of truth. The defense's own filings, statements, and client's authentication built the evidentiary framework. Plaintiff respectfully requests that the Court treat the defense representations as alleged: false or misleading statements about possession that corrupted the judicial process and procured the judgment through fraud on the court.

Respectfully submitted,

Dated: March 3, 2026

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